

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JENNY RODRIGUEZ, individually and as Administratrix
for the ESTATE OF JOEL CAPELLAN,

Plaintiff, SUMMONS

-against-

Index No.:

CITY OF NEW YORK, CESAR GOMEZ, DEREK
RIVERA, ANTHONY STABILE, and STEPHEN
TOMASZEWSKI,

Date Filed:

Defendants.
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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the attorneys of Plaintiff within twenty days after the service of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

This basis of venue is the location of the incident.

The incident occurred at the intersection of Nagle Avenue and Dyckman Street, New York, New York.

Dated: New York, New York
December 7, 2023

/s/
Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff
10 Times Square, 6th Floor
New York, NY 10018
Phone: (646) 706-7481

Defendant Addresses:

Defendant City of New York
100 Church Street
New York, NY 10007

Defendant Cesar Gomez
2770 Fredreick Douglass Boulevard
New York, NY 10039

Defendant Derek Rivera
4295 Broadway
New York, NY 10033

Defendant Anthony Stabile
4295 Broadway
New York, NY 10033

Defendant Stephen Tomaszewski
4295 Broadway
New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JENNY RODRIGUEZ, individually and as Administratrix
for the ESTATE OF JOEL CAPELLAN,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, CESAR GOMEZ, DEREK
RIVERA, ANTHONY STABILE, and STEPHEN
TOMASZEWSKI,

JURY TRIAL DEMANDED

Defendants.
-----x

Plaintiff, by her attorneys, Law Office of Gregory P. Mouton, Jr., LLC, respectfully
alleges:

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the death of Joel
Capellan.

2. As set forth more fully herein, Mr. Capellan was wrongfully shot thirty-four times
by the individual defendants in violation of his rights under the Constitution of the United States,
the Constitution of the State of New York, and the laws of the State of New York.

JURISDICTION AND VENUE

3. The incident occurred at the intersection of Nagle Avenue and Dyckman Street,
New York, New York.

4. This action falls within one or more of the exemptions set forth in N.Y. Civ. Proc.
L. & R. § 1602.

JURY DEMAND

5. Ms. Rodriguez demands a trial by jury in this action.

PARTIES

6. Plaintiff Jenny Rodriguez is a resident of the County of New York, State of New York.

7. Ms. Rodriguez is the mother of the decedent, Joel Capellan.

8. At the time of his death, Mr. Capellan was 29 years old.

9. Defendant City of New York is a municipal organization organized under the laws of the State of New York.

10. Defendant City of New York operates the New York City Police Department (“NYPD”), a department or agency of Defendant City of New York.

11. The NYPD is responsible for the appointment, training, supervision, promotion, and discipline of police officers and supervisory police officers, including the individually named defendants herein.

12. At all times relevant herein, Defendant Gomez was a lieutenant officer, employee, and/or agent of Defendant City of New York.

13. At all times relevant herein, Defendant Gomez was acting within the scope of his employment with Defendant City of New York.

14. At all times relevant herein, Defendant Gomez was acting under color of state law.

15. Defendant Gomez is sued in his individual and official capacities.

16. At all times relevant herein, Defendant Rivera was an officer, employee, and/or agent of Defendant City of New York.

17. At all times relevant herein, Defendant Rivera was acting within the scope of his employment with Defendant City of New York.

18. At all times relevant herein, Defendant Rivera was acting under color of state law.

19. Defendant Rivera is sued in his individual and official capacities.

20. At all times relevant herein, Defendant Stabile was an officer, employee, and/or agent of Defendant City of New York.

21. At all times relevant herein, Defendant Stabile was acting within the scope of his employment with Defendant City of New York.

22. At all times relevant herein, Defendant Stabile was acting under color of state law.

23. Defendant Stabile is sued in his individual and official capacities.

24. At all times relevant herein, Defendant Tomaszewski was an officer, employee, and/or agent of Defendant City of New York.

25. At all times relevant herein, Defendant Tomaszewski was acting within the scope of his employment with Defendant City of New York.

26. At all times relevant herein, Defendant Tomaszewski was acting under color of state law.

27. Defendant Tomaszewski is sued in his individual and official capacities.

STATEMENT OF FACTS

28. On October 16, 2022, Mr. Capellan was lawfully present at intersection of Nagle Avenue and Dyckman Street, New York, New York (“Subject Location”).

29. At the Subject Location, the individual defendants saw that two non-party individuals were attacking Mr. Capellan, including one such individual that was on Mr. Capellan’s back.

30. The individual defendants did not announce themselves as police officers.

31. The individual defendants, two of who were at point blank range, fired thirty-four shots into the back of Mr. Capellan’s body.

32. Mr. Capellan was at no time facing the individual defendants.

33. On or about December 25, 2022, Ms. Rodriguez, individually and on behalf of Mr. Capellan’s estate, served upon, presented, and filed with Defendant City of New York a Notice of Claim in writing.

34. Defendant City of New York has refused or neglected to make any adjustment or payment.

FIRST CAUSE OF ACTION

Excessive Force (Federal)

35. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

36. The individual defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on Mr. Capellan.

37. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SECOND CAUSE OF ACTION

Excessive Force (State)

38. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

39. The individual defendants violated the New York State Constitution, Article I, § 12 because they used unreasonable force on Mr. Capellan.

40. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

THIRD CAUSE OF ACTION

Failure to Intervene (Federal)

41. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

42. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene and prevent such conduct; and failed to intervene.

43. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

44. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FOURTH CAUSE OF ACTION

Negligent Supervision

45. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

46. Defendant City of New York knew or should have known of the individual defendants' propensity for the conduct alleged herein.

47. Defendant City of New York failed to take any steps to protect Mr. Capellan from the actions and/or inactions of the individual defendants.

48. The injuries sustained by Ms. Rodriguez were the result of the negligent retention and/or supervision of the individual defendants by Defendant City of New York.

49. The individual defendants were supervisors, co-employees, and/or working together at the NYPD.

50. The individual defendants knew or should have known of the individual defendants' propensity for the conduct alleged herein.

51. The individual defendants were negligent in that they failed to ensure that their co-employees provided with proper supervision.

52. Despite knowing that their subordinates and/or co-employees were negligent, Defendants took no steps to rectify their actions.

53. As a result of the foregoing, Mr. Capellan was caused to suffer severe personal injuries.

54. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the United States Constitution; in violating the New York State Constitution; in allowing Mr. Capellan's welfare to become endangered; in failing to create and implement policies to prevent violations of Mr. Capellan's rights under the United States Constitution and New York State Constitution; in failing to provide timely and proper medical care to Mr. Capellan; in failing to adequately monitor officers; in failing to properly discipline officers who violate the NYPD Patrol Guidelines; in failing to adequately monitor officers' Central Personnel Indexes (hereinafter "CPI"); in failing to properly discipline and monitor officers who are investigated by NYPD, the Civilian Complaint Review Board, and the Internal Affairs Bureau; in failing to properly train and retrain officers; and in otherwise being negligent.

55. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FIFTH CAUSE OF ACTION

Negligence

56. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

57. Defendants failed to take any steps to protect Mr. Capellan, including, but not limited to, in preventing the use of excessive force, assault, and battery to Mr. Capellan; in failing to announce themselves as police; and in failing to provide proper supervision.

58. As a result of the foregoing, Mr. Capellan was caused to suffer severe personal injuries.

59. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the United States Constitution; in violating the New York State Constitution; in allowing Mr. Capellan's welfare to become endangered; in failing to create and implement policies to prevent violations of Mr. Capellan's rights under the United States Constitution and New York State Constitution; in failing to provide timely and proper medical care to Mr. Capellan; in failing to adequately monitor officers; in failing to properly discipline officers who violate the NYPD Patrol Guidelines; in failing to adequately monitor officers' Central Personnel Indexes (hereinafter "CPI"); in failing to properly discipline and monitor officers who are investigated by NYPD, the Civilian Complaint Review Board, and

the Internal Affairs Bureau; in failing to properly train and retrain officers; and in otherwise being negligent.

60. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SIXTH CAUSE OF ACTION

Assault

61. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

62. The individual defendants intentionally acted to place Mr. Capellan in apprehension of imminent harmful or offensive bodily contact.

63. Mr. Capellan suffered apprehension of imminent harmful or offensive bodily contact.

64. As a result of the foregoing, Plaintiffs have been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SEVENTH CAUSE OF ACTION*Battery*

65. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

66. The individual defendants intended to make bodily contact with Ms. Rodriguez.

67. The individual defendants made bodily contact with Ms. Rodriguez.

68. Consequently, Ms. Rodriguez suffered bodily contact which was harmful, offensive, and without Ms. Rodriguez's consent.

69. As a result of the foregoing, Ms. Rodriguez has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

EIGHTH CAUSE OF ACTION*Gross Negligence*

70. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

71. Defendants acted in so careless a manner as to show complete disregard for the rights and safety of Mr. Capellan.

72. Defendants intentionally acted or failed to act knowing that their conduct was likely to or would result in injury and/or damage to Mr. Capellan.

73. Defendants intentionally failed to provide Mr. Capellan with timely and proper medical care and knew that their conduct was likely to or would result in injury and/or damage to Mr. Capellan.

74. Defendants acted in so reckless a manner or failed to act in circumstances where an act was clearly required so as to indicate disregard of the consequences of their actions or inaction.

75. Defendants' conduct, as outlined above, was willful and in reckless disregard.

76. As a result of the foregoing, Plaintiffs are entitled to punitive damages and costs.

77. As a result of the foregoing, Plaintiffs have been damaged in sums in excess of the jurisdictional limit of all lower courts which would otherwise retain jurisdiction over this matter.

NINTH CAUSE OF ACTION

Wrongful Death

78. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

79. At the time of Mr. Capellan's wrongful death, Mr. Capellan left surviving his distributes and next of kin, including Ms. Rodriguez; said distributes were dependent on Mr. Capellan for love, companionship, affection, society, guidance, support, and care, and suffered pecuniary damages and loss by reason of the wrongful death and conscious pain and suffering of Mr. Capellan which resulted from the negligence of Defendants.

80. The wrongful death of Mr. Capellan was occasioned wholly and solely through and by reason of the acts and/or omissions and/or negligence of Defendants.

81. Ms. Rodriguez, distributes, and next of kin of Mr. Capellan suffered and sustained great pecuniary loss by reason of Mr. Capellans's wrongful death, including, *inter alia*, funeral and burial expenses, loss of love, companionship, affection, services, society, guidance, support, and care, as well as loss of inheritance and other damages, all to the damage of Mr. Capellan's distributes in an amount which exceeds the jurisdictional limit of all lower courts which might otherwise have jurisdiction over this matter.

TENTH CAUSE OF ACTION*Denial of Medical Care*

82. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

83. As a result of being shot thirty-four times, Mr. Capellan was caused to suffer a condition that could produce death, degeneration, and/or extreme pain.

84. As a result of being shot thirty-four times, Mr. Capellan suffered the unnecessary and wanton infliction of pain.

85. Defendants were actually aware that Mr. Capellan was suffering from a serious medical condition but, nonetheless, failed to take appropriate action.

86. This failure was in violation of Mr. Capellan's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

87. As a result of the foregoing, Plaintiffs have been damaged in sums in excess of the jurisdictional limit of all lower courts which would otherwise retain jurisdiction over this matter.

ELEVENTH CAUSE OF ACTION*Monell*

88. Ms. Rodriguez repeats and re-alleges each and every allegation as if fully set forth herein.

89. This is not an isolated incident. Defendant City of New York, through its policies, customs, and practices, directly caused the constitutional violations suffered by Mr. Capellan.

90. Defendant City of New York, through the NYPD, has had, and still has, hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and

moral fortitude to discharge their duties in accordance with the Constitution of the United States and is indifferent to the consequences.

91. Defendant City of New York, at all relevant times, was aware that the individual defendants routinely committed constitutional violations such as those at issue here and has failed to change its policies, practices, and customs to stop this behavior.

92. Defendant City of New York, at all relevant times, was aware that the individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

93. That on the date of incident and at the location of incident, Defendants were present as part of their regular and official employment as police officers for Defendant City of New York and were acting under the color of law and within the scope of their employment.

94. Defendant City of New York caused, developed, maintained, and/or created a policy and/or procedure and/or custom and/or practice, or decision of a final policymaker, and acted with deliberate indifference to patterns and/or police practices violating constitutional rights of its citizens, which caused the violations of Mr. Capellan's rights, including the excessive and arbitrary use of force; excessive use of firearms; failing to train and retrain officers in the use of force and firearms; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence and investigate when allegations of police misconduct are alleged; condoning silence within the police department regarding misconduct; failing to properly supervise, train, investigate, or discipline officers; falsely swearing out police paperwork; falsifying evidence and NYPD paperwork; committing perjury;

failing to respond to evidence of corruption; and failing to intervene to prevent the above-mentioned practices.

95. Defendant City of New York knew to a moral certainty that its employees would confront situations like the subject incident involving Mr. Capellan, in which decisions regarding use of force would need to be made.

96. Defendant City of New York has a history of its employees mishandling similar situations similar to the subject incident, which present Defendant City of New York's employees with choices of the sort that training or supervision would make less difficult.

97. The wrong choice by Defendant City of New York's employees will frequently cause the deprivation of citizen's constitutional rights, as in the subject incident.

98. Defendant City of New York's policies, procedures, customs, and practices improperly train officers in the use of force and encourage the use of excessive force.

99. Defendant City of New York's policies, procedures, customs, and practices are inadequate regarding the escalation of force and use of firearms in police incidents.

100. Defendant City of New York's officers have not been properly trained as to the appropriate situational use of firearms and the potential risks associated with their use.

101. Defendant City of New York has refused to adopt industry standards and best practice policies that are in use in other police departments across the country regarding the use of force, including but not limited to the use of firearms.

102. Defendant City of New York's policies, procedures, customs, and practices fail to train officers about the appropriate techniques in the use of force.

103. Defendant City of New York's officers and Defendant-officers were inadequately trained and supervised in the implementation of NYPD policies for the use of force, including but not limited to the use of firearms.

104. Defendant City of New York has failed to discipline and monitor officers with CPIs of 3.1 or higher.

105. Defendant City of New York has failed to stop equipping officers with CPIs of 3.1 or higher with firearms in contravention of recommendations by the RAND Corporation's 2008 study (cited below).

106. The above failures were a contributing factor to the incident involving Mr. Capellan and resulting injuries because Defendant City of New York had no appropriate policy in place for such a situation and had not properly trained or supervised its officers in how to handle this situation.

107. The failure of Defendants to follow the NYPD policies in effect at the time of the incident also led to and/or contributed to Mr. Capellan's injuries.

108. The failure of NYPD supervisors to follow the NYPD policies in effect at the time of the incident and their failure to adequately supervise the officers under their commands contributed to Mr. Capellan's injuries.

109. Defendants failed to properly use verbal commands to communicate with Plaintiff and instead resorted to excessive force against Mr. Capellan.

110. The existence of aforesaid unconstitutional customs, policies, patterns, and/or practices may be inferred from repeated occurrences of similar wrongful conduct, as documented below.

111. The following are instances of an unconstitutional policy, procedure, custom, and/or practice of the City and/or the NYPD with respect to the use of excessive force; the use of firearms; and the inadequacy of the NYPD's policies, procedures, customs, and practices with respect to training and retraining its officers in how to use force, including but not limited to firearms:

- a. In 1984, Eleanor Bumpurs was shot and killed by NYPD officers while attempting to evict her from public housing.
- b. In 1999, NYPD officers shot and killed Gidone Busch.
- c. In 2007, NYPD officers shot and killed Khriel Coppin and David Kostovski in Brooklyn.
- d. In 2008, NYPD officers used excessive force against Iman Morales, causing him to fall to his death. Mr. Morales was naked at the time of the incident.
- e. In 2008, NYPD officer Maurice Harrington brutally beat Michael Cephus with a baton on Delancey Street in Manhattan.
- f. According to a 2008 RAND Corporation research study, which was commissioned at the request of then-NYPD Commissioner Raymond W. Kelly, RAND recommended that the "NYPD should ensure and document that trainees have mastered basic and complex use of force tactics and decision-making skills. This should be done by updating computer simulations . . . , ensuring that recruits pass proficiency standards . . . , enhancing record keeping for all training but particularly in-service training with data input over wireless modems to a master training file for each MOS (member of service) and with

training and other personnel data being part of a relational data system that would make all personnel information available for administrative and analytic use . . . , exploring alternatives to the current semi-annual firearm-requalification paradigm to provide enhanced firearm instruction that would focus on the officer's proficiency rather than just the score on a static target." RAND also noted that, during the "complex-skill training events," instructors did not respond to recruit error by demonstrating the correct behavior themselves. The RAND study also recommended that NYPD expand its review of tactics used during firearm and Taser shootings. The RAND study also noted that officers with a CPI of 3.1 or higher per year of service were three times more likely to discharge a weapon than other officers from the population of similar officers. This is important because as the RAND study notes, "NYPD might pay particular attention to shootings involving officers with an annual CPI-point average in excess of 3.1 to make sure that the officers did everything appropriate before discharging their firearms."

- g. In 2012, NYPD officers suffocated and killed EDP Shauna Francis in Queens.
- h. On May 5, 2013, NYPD officers used excessive force against Deion Fludd in the Rockaway Avenue subway station. The officers claimed that Mr. Fludd was hit by a subway train to cover up the force they used against him. Mr. Fludd died as a result of that incident.
- i. On September 14, 2013, NYPD officers shot at an unarmed man named Glenn Broadnax, injuring two bystanders in Times Square. NYPD officers then used

a stun gun on Mr. Broadnax, who was taken to Bellevue Hospital. According to then-NYPD Commissioner Raymond Kelly, Mr. Broadnax was searched and found with only a wallet in his right rear pocket.

- j. In 2013, the Civilian Complaint Review Board receive 5,410 complaints, 53% of which contained one or more allegations of improper force.
- k. On July 17, 2014, NYPD officers from the 120th police precinct, including but not limited to police officer Daniel Pantaleo, used excessive force against Eric Garner, causing Mr. Garner to die within minutes. As a result of this homicide, on December 4, 2014 the NYPD and specifically its commissioner William Bratton, instituted mandatory retraining of all officers in the use of force, de-escalation of interactions with citizens, and interactions with EDPs.
- l. On July 22, 2014, NYPD Police Commissioner William J. Bratton publicly stated that NYPD was undertaking a review of its training and tactics regarding officers' use of force. Commissioner Bratton ordered all police officers to go through mandatory retraining in the use of force. Commissioner Bratton stated: "As I have reviewed that incident and reviewed the training of the department, it is my belief that we are going to have to do more than just a review of Staten Island."
- m. On September 23, 2014, Sandra Amezcuita, who was pregnant at the time, was slammed to the ground by NYPD officers, beaten with a baton, and Tasered on her abdomen/stomach area.

112. These policies, practices, and customs were the moving force behind the injuries of Ms. Rodriguez.

PRAYER FOR RELIEF

WHEREFORE, Ms. Rodriguez respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally, on each cause of action;
- (b) Punitive damages against the individual defendants, jointly and severally, on each cause of action;
- (c) Reasonable attorney's fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
December 7, 2023

By: /s/
Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff
10 Times Square, 6th Floor
New York, NY 10018
Phone: (646) 706-7481

VERIFICATION

STATE OF NEW YORK }
 }
COUNTY OF New York } ss:

Jenny Rodriguez, being duly sworn, deposes, and says:

I am the plaintiff in the action herein. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except as to matters therein which are stated to be alleged on information and belief, and as to those matters I believe it to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Jenny Rodriguez
Jenny Rodriguez

Daniel Marks Jr. 12/07/2023



Index No.

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COUNTY OF NEW YORK

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CAPELLAN,

Plaintiff,

-against-

CITY OF NEW YORK, CESAR GOMEZ, DEREK RIVERA, ANTHONY STABILE, and
STEPHEN TOMASZEWSKI,

Defendants.

VERIFIED COMPLAINT

LAW OFFICE OF GREGORY P. MOUTON, JR., LLC

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Phone & Fax: (646) 706-7481